

Slocum v. Food Fair Stores of Florida

Torts
100 So.2d 396 (1958)

Keyword Subject

Intentional Infliction of Emotional Distress

Facts

While Plaintiff was shopping at Defendant's store, Plaintiff alleges that she was insulted by one of defendant's employees. This insult "

Procedural History

Trial Court: In favor of Defendant (Motion to Dismiss based on lack of Cause of Action Granted)

Appeal: In favor of Defendant (Motion to Dismiss Affirmed)

Issue

Did the insulting language that plaintiff claims caused her injury constitute an actionable invasion of a legally protected right?

Holding: No; Motion to Dismiss Affirmed

Principle

A distinction must be drawn between "conduct likely to cause mere 'emotional distress' and that causing 'severe emotional distress'"

Reasoning

Separate Opinions

Notes

It is for the court to determine, in the first instance, whether the conduct would reasonably be regarded as outrageous. Where reasonable men may differ, it is left to the jury as a question of fact.